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U.S. Department of State Diplomacy in Action

Tajikistan

Bureau of Democracy, Human Rights, and Labor

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Tajikistan is an authoritarian state; political life is dominated by President Emomali Rahmonov and an inner circle of loyal supporters. The country's population is approximately 7.1 million. The country has a constitution and a functioning multiparty political system, but in practice democratic progress was slow. The February parliamentary elections did not meet international standards; however, they were a step forward, and some opposition candidates won seats. After several years of improvement since the end of the 1992-97 civil war, stability throughout the country was consolidated.

The government's human rights record remained poor and corruption continued to hamper democratic and social reform. The following human rights problems were reported:

- restricted right of citizens to change their government
- torture and abuse of detainees and other persons by security forces
- threats, extortion, and abuse of civilians by security forces
- impunity of security forces
- lengthy pretrial detention
- lack of access to prisoners by family members and lawyers
- confessions obtained by torture accepted as evidence in trials
- harsh and life-threatening prison conditions
- restricted international monitor access to prisons
- extralegal extradition of prisoners from third countries with apparent Tajik complicity
- restricted freedom of speech and the press
- restrictions on freedom of religion, primarily for women
- registration denial of opposition political parties
- imprisonment of political opposition, including journalists
- harassment of international nongovernmental organizations (NGOs); difficulties with registration and visas
- violence and discrimination against women
- trafficking in persons
- child labor and forced labor

The government made significant efforts in combating trafficking in persons. During the year the government engaged in international cooperation to repatriate a large number of victims back to the country, and it reported a dramatic increase in the number of trafficking convictions.

RESPECT FOR HUMAN RIGHTS**Section 1 Respect for the Integrity of the Person, Including Freedom From:****a. Arbitrary or Unlawful Deprivation of Life**

There were no reports that the government or its agents committed arbitrary or unlawful killings.

Land mine deaths occurred on the border with Uzbekistan; there were a reported 80 deaths including both civilians and border guards. The government continued to work with international organizations during the year to remove land mines along the border with Uzbekistan and with Afghanistan to prevent deaths and casualties.

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, government security officials reportedly employed them.

Torture occurred during the year. Security officials, particularly from the Ministry of Interior (MOI), continued to use systematic beatings, sexual abuse, and electric shock to extort confessions during interrogations. During the year several alleged members of Hizb Ut-Tahrir (HT), an extremist Islamist political organization, and members of their families claimed they were tortured and beaten while in police custody (see sections 1.d. and 2.b.).

Beatings and mistreatment were also common in pretrial detention facilities, and the government took minimal action against those responsible for the abuses (see Section 1.d.). Yoribek Ibrohimov "Shaykh" and Muhammadruzi Iskandarov both stated police beat them and subjected them to electric shocks while they were in custody. The International Committee of the Red Cross (ICRC) monitors were unable to investigate claims of torture against them and their associates and the government did not launch an official investigation.

Citizens in the southern regions of the country made numerous complaints of harassment and abuse committed by border guards involved in drug trafficking.

Prison and Detention Center Conditions

Prison conditions remained harsh and life threatening. Prisons were generally overcrowded and unsanitary. Disease, particularly the spread of tuberculosis, and hunger were serious problems. There were reports that up to 160 prisoners died of hunger.

A separate prison held only former members of so-called "power ministries," such as the police, intelligence and secret officers, and the military. Conditions in such prisons were better than in normal prisons.

In August prisoners of the Qurghon-Teppa prison staged a protest--and some prisoners attempted suicide--in reaction to the appointment of Izzatullo Sharipov as deputy minister of justice in charge of the penitentiary system. Sharipov reportedly was close to the president and ruthless in his relations with others.

The government denied the ICRC free and unhindered access to prisons controlled by the Ministry of Justice (MOJ), including pretrial detention centers. At year's end the ICRC continued to negotiate with the MOJ to regain free and unhindered access to all prisons. The MOJ granted foreign diplomatic missions limited access to prisons and detention facilities. A select group of local NGOs were also granted limited access to facilities in order to implement their assistance programs.

d. Arbitrary Arrest or Detention

Arbitrary arrest and detention remained serious problems. The law allows for lengthy pretrial detention, and there were few checks on the power of prosecutors and police to make arrests.

Role of the Police and Security Apparatus

The Ministries of Interior, Security, and Defense shared responsibility for internal security. The MOI is primarily responsible for public order and controls the police force, the Ministry of Security (MOS) has responsibility for intelligence, and the Ministry of Defense (MOD) is responsible for military security. Officially the MOD is responsible for external security; however, it can be employed in serious domestic conflicts.

Impunity remained a serious problem, and officers who committed abuses were rarely prosecuted. The government acknowledged that police, army, and security forces were corrupt and that most abused citizens remained silent rather than risk retaliation by authorities. However, some abuses were brought to light and prosecuted. For example on June 19, military troops from the MOD in the Sughd Region were sentenced for abuse of authority and nine additional violations of the criminal code. Victims of police abuse may submit a formal complaint in writing to the officer's superior. Victims who bring their case to the media have greater success of seeking justice than those who do not.

Officers often bribe their commanders for promotion. Traffic police stop cars and unofficially fine them for traffic violations and then pocket the fines themselves.

Arrest and Detention

Police may detain persons without a warrant for up to 72 hours. Prosecutors are empowered to detain persons for 10 days, after which charges must be filed. This was generally followed in practice. Detainees are given access to an attorney; however, government-appointed attorneys generally serve the interests of the government. If a detained person does not demand access to an attorney, government officials often overlook this right. There is no requirement for judicial approval or a preliminary judicial hearing on the charge or detention. There is no bail system, although criminal case detainees may be conditionally released and restricted to their place of residence pending trial; those on conditional release sign a "promise letter" that they will not leave an area around their residence. According to the law family members are allowed access to prisoners only after indictment. Officials occasionally denied attorneys and family member's access to detainees. Many detainees were held incommunicado for long periods of time and remained in police custody without being formally charged.

In some cases security officers, principally from the MOI and the MOS, did not obtain arrest warrants and did not bring charges within the time specified by the law. Persons released from detention often claimed they were mistreated, beaten, and tortured (see section 1.c.).

The government always provided a reason for arresting people, although in some cases authorities falsified reasons for arrest or inflated minor problems to make politically motivated arrests. Police authorities have arrested innocent people, accused them of committing crimes the police were attempting to solve, and subsequently framed them in order to solve the case.

During the year authorities made politically motivated arrests, although there was no reliable estimate of the number of political detainees.

Muhammadrusi Iskandarov, head of the Democratic Party of Tajikistan and former chairman of Tajikgaz, was returned to the country in April after his December 2004 detention in Moscow, under circumstances that appeared to be an extrajudicial rendition; Iskandarov was charged with violating eight articles of the criminal code including: banditry, terrorism, illegal possession of weapons, having an unauthorized bodyguard, and embezzlement. At the request of the Tajikistan General Prosecutor's Office, Russian authorities had taken Iskandarov into custody on an international arrest warrant, but found

insufficient evidence to extradite him. On April 3, the Russian general prosecutor turned down an extradition request and released Iskandarov. He was subsequently kidnapped by unknown forces and on April 26, the Tajik prosecutor general announced Iskandarov was in pretrial detention in Dushanbe. Iskandarov was denied immediate access to his family and an attorney (see section 1.e.). Iskandarov reported that he was tortured, injected with drugs, and electrocuted while in detention. He was sentenced to 23 years in prison. He is appealing to the Supreme Court. No date was set for the appeal trial by year's end.

There were reports that the government illegally detained other members of rival political factions.

According to media reports, approximately 99 members of HT were arrested. An unknown number were sentenced in connection with crimes related to their membership in the banned extremist political organization (see sections 1.c. and 2.b.).

Authorities arrested two Islamic Revival Party (IRPT) members after the parliamentary elections, alleging they were "rough" towards an election official. One IRPT member was released and the other, Saifiddin Fayzov, was charged with hooliganism, libel, incitement of ethnic and racial enmity, and premeditatedly causing damage to others, and was sentenced to four years in jail in November. Fayzov denied the charges and claimed they were politically motivated. The IRPT filed an appeal, but no progress was made by year's end.

Following indictment, the law allows for pretrial detention of up to 15 months. The first three months of detention are at the discretion of a local prosecutor; the next three months must be approved at the regional level. The prosecutor general must approve longer periods of detention, and the government generally followed this in practice. However, the government did not always follow pretrial procedures in practice if detainees were unaware of their rights.

Former drug control agency chairman, General Ghaffur Mirzoyev, was held in pretrial detention since August 2004 on charges including murder, illegal use of bodyguards, possession of arms, and privatization of government property and other illegal economic activities; observers believed the charges to have a political element, but most recognized Mirzoyev as a corrupt official with alleged narcotics connections.

International and local sources estimated that approximately three hundred former opposition fighters of the United Tajik Opposition remained in prison after the civil war despite two general amnesties in 1998; the government claimed these remaining fighters committed grave crimes during the war and considered them criminals. Cases of opposition fighters remaining in detention or prisons were reviewed in November 2004; controversy over which crimes the amnesties covered had delayed case resolution. Most fighters were determined to be appropriately jailed for grave crimes, while others were released.

e. Denial of Fair Public Trial

Although the law provides for an independent judiciary, in practice the executive branch and criminal networks exerted pressure on courts and judges, and corruption and inefficiency were problems.

The president is empowered to appoint and dismiss judges and prosecutors with the consent of parliament. Judges at the local, regional, and national level were generally poorly trained and had extremely poor access to legal reference materials and other resources. Low wages for judges and prosecutors left them vulnerable to bribery, which remained a common practice.

The UN special rapporteur noted an imbalance between the power of prosecutors vis-à-vis lawyers and judges in the system. He found the prosecutors' ability to initiate investigations and prevent implementation of court decisions hampered objectivity and fairness of the process.

The judicial system is composed of city, district, regional, and national courts, and there are parallel economic and military court systems. Higher courts serve as appellate courts for lower ones. There also is a constitutional court that reviews citizens' claims of constitutional violations.

During the year the government took steps to improve the overall situation and address problems of judicial integrity by holding judges accountable and arresting some of the most corrupt judges and prosecutors. During the year three judges were convicted but not a single prosecutor.

Trial Procedures

Trials are public and juries are used, except in cases involving national security or the protection of minors. While the law stipulates that a case must be brought before a judge within 28 days after it is entered for trial, most cases were delayed for months at a time (see section 1.d.). Under the law courts appoint attorneys at public expense; however, in practice arrested persons often were denied timely access to an attorney, and some were not allowed access to any legal counsel.

Prosecutors are responsible for conducting all investigations of alleged criminal conduct. According to the law both defendant and attorney have the right to review all government evidence, to confront witnesses, and to present evidence and testimony. No groups are barred from testifying, and, in principle, all testimony is given equal consideration.

MOJ officials maintained that defendants benefit from the presumption of innocence, despite an unmodified Soviet-era statute that presumes guilt rather than innocence. In practice an indictment implied that the government was convinced of a suspect's guilt, and government officials routinely made public pretrial statements proclaiming a suspect's guilt. The law provides for the right to appeal; however, there were few successful appeals. Media reports stated that over half of cases were appealed, but only 10-15 percent were successful.

"Supervisor powers" provided for by law allow authorities to reopen and re-examine court cases, indefinitely in criminal cases, after the appeal period has expired; re-examinations are conducted by the court presidium. The general prosecutor and deputies are included among those who can protest a court decision under supervisory powers, thereby annulling the effect of the decision and forcing it to be re-examined by the presidium or at a higher court level.

The General Prosecutor's Office used such powers in an attempt to annul the supreme court's release of Jum'aboy Tolibov (see section 2.a.). After another hearing the court still ordered his release against the protest of the General Prosecutor's Office, and on December 16 authorities released Tolibov.

Prosecutors are legally allowed to intervene as a party in cases between private parties that do not involve the government, and the Office of the General Prosecutor has an entire department which supervises the court system to ensure that cases are "correctly decided." In practice however, there were no reported incidents of prosecutors exercising this right to intervene in purely private cases.

Courts routinely used confessions obtained through torture and beatings (see section 1.c.).

In rare instances military courts try civilians, who have the same rights as defendants in civilian courts, but there were no reports of such cases during the year. A military judge and two officers drawn from the service ranks hear such cases.

Political Prisoners

There was little official information about the number of political prisoners.

On April 26, following a five-month closed trial, the supreme court announced former interior minister Yakub Salimov was sentenced to 15 years in prison for crimes against the state and high treason.

Rustam Fayziev, deputy chairman of the unregistered Party of Progress was sentenced June 28 to five years in jail for insulting and defaming President Rahmonov in a letter. Mukhtor Boqizoda, editor-in-chief of the independent newspaper Nerui Sukhan, was sentenced August 25 to two years of correctional labor. Nizomiddin Begmatov, Chairman of the SDPT in Rasulov District and Nasim Shukurov, member of the presidium of the SDPT in the same district, were sentenced in June to imprisonment for one and a half years respectively.

On October 6, the supreme court sentenced Iskandarov to 23 years in prison and as well as other penalties, including restitution of \$470 thousand (1.5 million somonis) allegedly embezzled from Tojikgaz, the country's state-run gas monopoly, during his time as head. While most observers believed allegations of corruption and embezzlement were well-founded, local observers, human rights activists, and the political opposition charged that Iskandarov's arrest, trial, and verdict were politically motivated to intimidate future political challengers.

In September Yoribek Ibrohimov "Shaykh" was sentenced to 24 years imprisonment for attacking a government office; authorities stated Iskandarov ordered the attack. Ibrohimov maintained his innocence and alleged that authorities tortured and beat him, resulting in a broken his leg (see section 1.c.).

IRPT officials Shamsiddin Shamsiddinov and Qosim Rakhimov, both sentenced in 2004 remained in prison. The IRPT alleged that their convictions were politically motivated to discredit the party and not an abuse of religious freedom. However, local and international observers said the two cases exemplified how the authorities can subject both members of Islamic groups and the political opposition to pressure.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions and while police forces committed some violations in practice, authorities generally respected the prohibitions.

Under the law police cannot enter and search a private home without the approval of a prosecutor, except in special circumstances in which a delay would impair national security. If police search a home without prior approval they must inform a prosecutor within 24 hours. In practice police frequently ignored these laws and infringed on citizens' right to privacy. There is no independent judicial review of police searches conducted without permission.

The law prohibits the government from monitoring private communications; however, it is believed that they do in certain cases.

Family members of alleged HT members, an extremist Islamist political group, claimed that they were mistreated and beaten while in police custody (see sections 1.c., 1.d. and 2.b.).

Police and interior ministry officials often harassed the families of suspects in pretrial detention or threatened to do so to elicit confessions (see section 1.c.).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law provides for freedom of speech and of the press; however in practice, the government restricted these rights.

On occasion individuals who disagreed with government policies were subjected to intimidation and discouraged from speaking freely or critically. Government interference was particularly acute surrounding the February parliamentary elections. The government threatened to revoke licenses of businessmen who were critical of the government. Prior to the elections the government denied opposition parties television airtime and closed several newspapers perceived as opposition.

Of the 99 HT members detained during the year, the majority faced charges of publicly calling for the overthrow of the Tajik constitution and the dissemination of subversive literature.

The independent media were active but subjected to different means of government control and intimidation. During the year the government strengthened control over the media. According to international observers and media monitoring groups, the reversal was part of the government's effort to consolidate power and influence in advance of the scheduled 2006 presidential elections. The government has not issued new media licenses to independent organizations.

There were numerous print media outlets, private television stations, and radio stations in the country. There were also six government television stations. Of the 18 private television stations, only a handful were genuinely independent and not all of them operated uninterrupted. During the year the MOJ registered only one new newspaper publishing political material, *Millat (Nation)*, as well as the state newsletter *Nabzikhobar (Pulse of the East)*. In total eight new publications were registered, but the others focused on entertainment or other nonpolitical topics. All other applications to register newspapers were rejected, including the national newspaper *Imruz (Today)*. All major opposition newspapers had ceased to operate due to government pressure. The MOJ registered two new radio stations. In September a second national governmental TV station, Safina, began broadcasting. International media were allowed to operate freely, including rebroadcasts of Russian television and radio programs.

During the year international NGO Internews experienced registration problems which threatened the launching of five new community radio stations under its auspices (see section 4).

The government subsidized a large majority of publications and broadcast productions. Some of the independent stations had their own studio facilities and broadcast equipment, but most depended on government-owned transmission equipment to broadcast their programs; the government did not interfere with their broadcasts.

Independent radio and television stations continued to experience administrative harassment and bureaucratic delays. Individual journalists were also subjected to harassment and intimidation on occasion, sometimes perpetrated by government authorities. There were instances of violence against journalists by unidentified persons.

On July 28, Jum'aboy Tolibov, a member of Union of Journalists and a government official from the Ayni District of the Sughd Region, was sentenced for reporting shortages in his home district and criticizing local authorities, including the district prosecutor. The official charges against Tolibov were hooliganism, illegally entering a residence, and abusing his office as an administrator, although an expert group of the National Association of Independent Mass Media of Tajikistan (NAMSIT) concluded his detention to be directly related to his journalism. In 2004 he published commentaries criticizing local authorities. On October 11, the supreme court partially overturned Tolibov's conviction and ordered him released from prison, but the Dushanbe Prosecutor General's Office blocked his immediate release. The office may legally suspend implementation of a supreme court decision by filing a letter of appeal; an appeal was filed and the supreme court upheld the decision to release him. On December 16, prison authorities finally released Tolibov.

Mukhtor Boqizoda, editor in chief of independent newspaper *Nerui Sukhan* was sentenced to two years' labor for the illegal use of electricity (for use for his foundation's printing house); such offenses ordinarily receive an administrative fine. Boqizoda's newspaper was known for criticizing government policy and the president. There was no progress in the case of Rajabi Mirzo, the editor-in-chief of *Ruzi Nav* who was beaten by unknown assailants near his home in July 2004 in Dushanbe.

Other types of harassment reported included trials to intimidate other journalists, "warnings" made by telephone and in person at a prosecutor's office or during visits to editorial offices, selective tax inspections, and close scrutiny of relatively independent publications and television and radio stations, such as by counting the number of copies compared to the declared circulation to make sure publications do not exceed the permitted number. Although this practice was mainly a tax issue, it was also used for political harassment.

The government controlled most printing presses, the supply of newsprint, and broadcasting transmission facilities; the MOJ received instructions not to register NGOs which have publishing activities in their charters. In January the government closed the private printing house Kayhon, which was publishing the independent newspaper *Nerui Sukhan*. *Nerui Sukhan* was among four popular independent newspapers (also *Adolat*, *Ruzi Nav* and *Odamu Olam*) that remained unpublished because state and private printing houses refused to print them. Both *Odamu Olam* and *Nerui Sukhan* printed their papers only once during the year. Other independent newspapers faced similar difficulties.

The government also restricted broadcast licenses. To obtain a broadcast license, individuals must apply to the Ministry of Communications and the State Television and Radio Committee. The government was rewriting broadcast licensing regulations with public debate and input by journalists, but the process was lengthy and licensing of new broadcast outlets generally remained suspended.

On the eve of the parliamentary elections the nongovernmental TV station Somoniyon in Dushanbe and Guli Bodom in Konibodom were closed. Guli Bodom resumed broadcasting after the elections but Somoniyon remained closed (the official explanation was unpaid debts).

Journalists reported that government officials limited their access to information or provided "advice" on what news should not be covered. Editors and reporters frequently exercised self-censorship to avoid problems with the authorities, and fearing reprisals and the kind of violence committed against journalists during the civil war. The NAMSIT annual reports articulated the primary problem facing media to be correspondents' limited access to information. In response the government mandated regular press conferences by ministries in which generally laudatory reports were presented and hard questions ignored.

Under the law a person can be imprisoned for up to five years for insulting the president. Rustam Fayziev, deputy chairman of the unregistered Party of Progress received this sentence for insulting the president (see section 1.e.).

Latif Vakhob, deputy director of *Nerui Sukhan*, was sentenced to one year forced labor and a fine for a 2004 article accusing a professor of bribery; this was a comparatively excessive penalty for libel.

Opposition politicians had very limited access to state-run television. The government allowed the opposition leaders limited airtime during the parliamentary election campaign in January and February, but after that, opposition politicians had no access to state TV and radio. The government blocked access to several Internet sites, including *TajikistanTimes.ru* which belongs to Dodojon Atoulloev, an opposition journalist based in Moscow.

The government did not restrict academic freedom.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The law provides for freedom of assembly; however, the government at times restricted this right in practice.

A permit from a local executive committee is required to organize any public assembly or demonstration; only registered organizations may apply for permits. Fear of reprisal was so widespread that unapproved public protests or political demonstrations were rare; the public was also wary of any action that could precipitate a return to the civil war violence.

Freedom of Association

The law provides for freedom of association; however, the government sometimes restricted this right in practice. All NGOs must register with the MOJ. International NGOs, particularly ones supported by Western donors and involved in democracy-building activities face registration problems from the government. Officials cite technical application and legal problems and delay the process.

During the year, the government increased monitoring of the activities of religious institutions, as well as groups, to prevent them from becoming overtly political. Some individuals, such as members of the banned extremist HT organization, were arrested and sentenced to long prison terms for subversion and other crimes. Others remained in detention awaiting trial or sentencing (see sections 1.c. and 1.d.).

The government's concern about Islamic fundamentalism among the country's Muslim population prompted it to ban HT in April 2004 for alleged links with terrorist organizations. The group had a following among the ethnic Uzbek population in the north and is growing in the south. The group promoted hate and praised acts of terrorism, although it maintained it is committed to nonviolence. HT's anti-Semitic and anti-Western literature called for the overthrow of secular governments, including those in Central Asia, to be replaced with a worldwide Islamic government called the caliphate.

According the Prosecutor General's Office, the government filed 74 criminal proceedings against 99 HT activists. Approximately 40 were convicted on charges of active membership in the organization, failure to report criminal activity, distribution of extremist literature, inciting religious hatred, and seeking to disrupt constitutional order, and were sentenced to up to 12 years in prison. The rest were awaiting trial at year's end (see section 1.d.).

During the year several international NGOs faced registration problems and increased scrutiny (see section 4).

During the year the government refused to register political parties and associations that were considered to be opposition groups.

c. Freedom of Religion

The law provides for freedom of religion; however, the government imposed some restrictions.

The country is a secular state, and the government did not explicitly ban, prohibit, or discourage specific religions from practicing their beliefs. Islam is the majority religion and the government promoted respect for traditional Islam; however, it viewed extremist Islamist groups as a threat to national security (see section 2.b.). The law requires all religious communities to be registered by the State Committee on Religious Affairs (CRA). The government maintained that registration helped to ensure that religious groups acted in accordance with the law; in practice, the provision was sometimes used to control political and religious activities.

In April the CRA banned activity of the sect Son Min in the Sughd Region for violations of their charter.

Six new central mosques were registered in six months. Mosques in Spitamen, Mastchoh, and Vahdat were closed because they failed to meet the law on religion and religious organizations.

In July CRA officials invited imams and other employees of mosques from all over the country to Dushanbe for "training." Local observers reported the government used the exercise as a means to improve the knowledge of the imams by teaching them the government's perceptions about various sects and new developments in Islam as well as the dangers of HT.

In contrast to previous years, there were no reports of arrests of high-profile Muslims.

A Korean Christian Church in Dushanbe experienced legal harassment from the Dushanbe Mayor's Office over a property dispute but was operating without complaint by year's end.

Missionaries of registered religious groups were not legally restricted and proselytized openly. The government's fear of Islamic extremism prompted it to restrict visas for Muslim missionaries. Local communities did not particularly welcome missionaries and harassed some religious groups in response to evangelical activities.

In February the courts sentenced a member of the radical Islamic group Bay'at to 24 years in prison for murdering a Christian missionary in 2004.

Some Mullahs spoke out against women attending mosques, despite support from some Islamic scholars and several mosques for them to attend. The government indicated that religious instruction should not take place at home, which could deprive many women of access to religious practice.

Some regional and local interior departments, mainly in the Sughd region, continued to refuse to issue internal identification documents to women who refused to be photographed without the *hijab* (headscarf). The SCRA intervened to allow those women to obtain documents when cases were brought to its attention. On October 19, the Ministry of Education banned *hijabs* in schools and institutions of higher education; officials cited the need to uphold secular education, although this provision is not the law. Many female students and teachers were expelled from schools for wearing *hijabs*.

Authorities at times restricted Muslim religious activities. For example, government printing houses are prohibited from publishing texts in Arabic and generally did not publish religious literature; however, they did so in special cases, including copies of the Koran in Arabic script. There were no restrictions on private Arabic language schools, but restrictions on home-based Islamic instruction remained in place because of political concerns.

The CRA controlled and organized hajj participation by citizens. The CRA required hajj pilgrims to register with authorities and travel by air using the state-owned airline, citing hygiene and safety concerns regarding other means of travel. The CRA placed a quota of 3,500 Tajik hajjis.

Societal Abuses and Discrimination

There were about 200 Jewish persons in the country. There were no reported anti-Semitic incidents.

For a more detailed discussion, see the [2005 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2005/\)](https://2009-2017.state.gov/j/drl/rls/irf/2005/).

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The law provides for these rights, although the government imposed some restrictions.

During the year the government lifted restrictions on citizens traveling to the border districts. Foreigners are still prohibited from traveling within a 15-mile zone along the country's borders with China and Afghanistan without permission from the Ministry of Foreign Affairs. The restriction was not always enforced along the western part of the border with Afghanistan, although a special visa was required for travelers--including international workers and diplomats--to Gorno-Badakhshan. Diplomats and international aid workers could travel to the Afghanistan border region without prior authorization. Previously, the MOS had required 48-hour prior notice to travel to this area.

There are no laws that provide for exile and there were no reports of forced exile. Some government opponents remained in self-imposed exile in Russia.

Persons wishing to emigrate to countries of the former Soviet Union must notify the MOI prior to their departure. Persons who wish to emigrate to other countries must obtain an immigrant visa to receive a passport, and persons who settle abroad are required to inform the Tajikistan embassy or Tajikistan interest section of the nearest Russian embassy or consulate.

Most persons who left the country were permitted to return freely. A few people active with the Tajik opposition who left during the civil war experienced administrative difficulty in obtaining new documents that would permit them to return. Those who were pardoned are permitted to return; high-level military officials were not pardoned. The government provided protection and modest assistance to resettle any citizens who returned voluntarily and cooperated with international organizations that helped fund assistance and resettlement programs.

Protection of Refugees

The law provides for the granting of asylum or refugee status to persons in accordance with the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol, and the government has established a system for providing protection to refugees. During the year however, the government's protection of refugees deteriorated in practice. The government no longer registered asylum seekers for national security concerns. During the year refusals to applicants for asylum or refugee status increased.

In practice the government provided some protection against *refoulement*, the return of persons to a country where they feared persecution, and granted refugee status or asylum. The government also provided some temporary protection to individuals who may not qualify as refugees under the 1951 convention and 1967 protocol. The government did not fully cooperate with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in assisting refugees. UNHCR has been denied its observer status in the Refugee Status Determination Commission in April.

The government deported 17 refugees to Afghanistan, prompting UNHCR protest. The refugees were not given access to lawyers or the opportunity to appeal the decision, as provided for by law.

A group of mostly Afghan refugees remained in the country with no clear future. They were not fully integrated into society and UNHCR had not completed its prescreening for asylum in third countries. Police officers continued to mistreat and harass the country's Afghan refugees, who resided mainly in the capital and in Khujand. Although their treatment improved in some areas, many Afghan refugees claimed they were frequently harassed and intimidated into paying illegal registration fees, bribes, and other fines to police who falsely accused them of being affiliated with the Taliban. Despite legislation allowing Afghan refugees to resettle in the country and to obtain citizenship, to date no Afghan refugee has been granted citizenship. During the year the government summarily deported several Afghan refugees, ignoring UNHCR's protest for due process.

Afghan refugees were summarily deported without consultation with UNHCR, families were broken up, and the government was not responsive to UNHCR's protests. Iranian refugees have also been harassed in Tajikistan by Iranian officials.

Refugees currently in detention were denied the right to speak to a lawyer and the right to appeal a deportation decision within one week, as provided for by law.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The law provides citizens with the right to change their government peacefully; however, the government restricted this right in practice.

The country's political process made little progress in its transition from a Soviet-style system. The president, together with an inner circle of loyal supporters primarily from his home region of Kulob, continued to dominate the government and further consolidated his power. The president had broad authority to appoint and dismiss officials.

Elections and Political Participation

The February parliamentary elections were an improvement but did not meet international standards and were not conducted fully in accordance with domestic law. Hundreds of violations were registered. Political parties, international organizations, foreign embassies, and NGOs complained of gross violations. International observer organizations criticized the elections,

noting that election officials at the local level did a credible job, while district level officials manipulated results. The OSCE reported the government did not adequately implement improvements in the legislative and administrative framework, exercised excessive control during the campaign period, obstructed observers during the election, and that the actual voter turnout, while high, did not reach the 92 percent reported. Instances of individuals voting for family members, submitting multiple ballots, and voting without proper identification occurred. In some areas polling stations closed early. Government resources and media time were given to the ruling PDPT but to no other party. Courts of all levels ignored appeals brought against the electoral commissions and polling stations. However, Ayub Nematov, head of the Konibodom Chairman's Office was charged with interfering with the work of the electoral commission and forging voting documents.

The propresidential PDPT continued to control an overwhelming majority of seats in both houses of parliament (Majlisi Oli). The PDPT's majority status resulted in a legislative branch dominated by the executive branch.

Although six legally registered parties participated in February elections, four parties continued to be banned during the year: the Adolatkoh Party, the Party of Popular Unity, the Party of Political and Economic Reforms, and the Agrarian Party. At year's end, the MOJ still refused to register The Unity Party and the Progress Party of Tajikistan, though neither was banned explicitly. Of three new parties seeking registration, only the Party the Economic Reform of Tajikistan and Agrarian Party of Tajikistan were successful. The Party of Vahdat (Unity) was not registered due to technical registration difficulties, but the party asserted the delay was politically motivated. The law prohibits political parties from receiving support from religious institutions, but religiously affiliated parties, such as the IRPT can be registered. Several new parties applied for registration.

Opposition political parties, including unregistered ones, remained small, had limited popular support, and were kept under close scrutiny by the government. While they were generally able to operate, they had difficulty obtaining access to state-run media (see section 2.a.). The chairman of the Social Democratic Party of Tajikistan alleged the government systematically harassed its supporters. The government sometimes sidelined political opponents and potential rivals by bringing criminal charges against them. Though some of the charges are likely true, the appearance was that the court cases were politically motivated (see section 1.e.).

According to June 2004 amendments to the parliamentary election code, candidates must pay a registration fee of approximately \$500 (1,400 somoni), 200 times the minimum monthly wage, which could prevent opposition candidates from running in the election. The code also limited participation of civil society election observers.

There were 16 women (11 in the lower and 5 in the upper house) in the 96-seat parliament; 1 held a position as deputy chair and 2 were heads of committees in the lower house of parliament. Many women also served as deputy ministers in the government; one of the deputy prime ministers was a woman.

There were 3 members of minorities (2 Uzbeks and 1 Kyrgyz) in the 96-seat legislature. Ethnic Uzbeks were represented in the government, although not in direct policymaking roles.

Government Corruption and Transparency

Corruption in the country was widespread and pervasive, particularly bribery and nepotism. The government acknowledged the problem and took steps to combat corruption, including trying officials and judges for taking bribes.

Although the law requires government officials to provide information to journalists upon request, there was no legal provision for regular citizens' public access to government information. In practice the government did not permit free access to information and some officials disregarded the law concerning journalists, as there was no enforcement. In response to criticisms the government mandated regular press conferences by ministries in which generally laudatory reports were presented and hard questions ignored.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A growing number of domestic and international human rights groups faced government pressure and international NGOs engaged with democracy issues encountered registration problems. The government continued to request sensitive information from NGOs such as members' personal information, information about students affiliated with the organizations, activities, and financial status. The media increasingly slandered foreign NGOs in the press. Government officials were somewhat responsive to the views of human rights groups.

The government did not block the registration of local NGOs addressing human rights, and the number of domestic human rights organizations slightly increased during the year. According to the UNHCR there were over two thousand NGOs in the country focusing on a wide variety of issues, including child welfare, civil society, mass media, and health. At times authorities restricted freedom of assembly and association for organizations involved in political activities, and forming and registering an NGO with the MOJ remained cumbersome and bureaucratic. Otherwise local NGOs generally did not face systematic governmental harassment.

The government permitted some international NGOs to operate in the country. During the year the government denied the registration of several international NGOs working on democracy issues, including Freedom House, the National Democratic Institute, and Internews. NGOs were asked to reregister with the MOJ to implement a law passed three years ago; observers believed the provision was designed to restrict NGO activity.

The government's Office for Constitutional Guarantees of Citizens' Rights under the president continued its work of investigating and answering citizens' complaints. Staffing inadequacies and uneven cooperation from other government institutions hampered their effectiveness.

The parliament's committee on legislation and human rights also monitored human rights violations, but lacked full independence.

The government commission on fulfillment of international human rights is a centralized body that receives human rights complaints and coordinates a response. They delegate each complaint to local administration, and inform the General Prosecutor's Office, MOI and other relevant ministries. The body is operated at the deputy prime minister level and was somewhat effective.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The law provides for the rights and freedoms of every person regardless of race, gender, disability, language, or social status. In practice there was discrimination against women and trafficking in persons was a problem.

Women

Violence against women, including spousal abuse, remained a widespread problem. Most cases of domestic abuse went unreported and reported cases were seldom investigated. Cases of domestic abuse may be prosecuted under other laws, such as "hooliganism," and accurate statistics on the number of domestic violence cases were difficult to estimate. There continued to be reports, particularly in rural areas, about abductions of young women who were then raped or forced to marry their abductors.

The law prohibits rape (although not specifically spousal rape), which is punishable by up to 20 years' imprisonment. As with abuse incidents in general, it was widely believed that most cases were unreported and that the problem was growing, particularly in urban areas. In addition family members and acquaintances often used threats of rape to intimidate women. There were no official statistics on the number of rapists charged, prosecuted, or convicted.

A handful of domestic and international NGOs supported women's resource centers to assist rape and spousal abuse victims. Government funding for such centers was extremely limited, although it had a specific committee for women's and family affairs within the office of the president. NGOs and some government structures discussed violence against women in

the framework of the government's reporting obligations for UN conventions.

Prostitution is illegal, though in practice, apprehended prostitutes were assessed a nominal fine and released. Pimps and madams were prosecuted regularly. Prostitution was a growing problem in the country. There are no official figures

Trafficking of women for the purposes of sexual exploitation and forced labor was a serious problem (see section 5, Trafficking).

The law prohibits sexual harassment with penalties of up to two years. In practice however, women were often sexually harassed and had to perform sexual favors in order to get a job or maintain one.

Cases often went unreported because of the social stigma attached to victims. Due to traditional attitudes it was common for men to sexually harass and commit acts of violence against women. An Asian Development Bank study cited that 52 percent of women reported they have been sexually harassed.

While there was no formal discrimination against women, they faced traditional societal discrimination, diminishing educational opportunities, and increasing poverty. The law provides women with equal pay for equal work with men, but it was not always enforced in practice.

In August 2004 the country's highest Islamic body, the Chairmen of the Council of Islamic Scholars of Tajikistan, issued a *fatwa* that prohibited women from praying in mosques that do not have fully separate facilities for men and women. The government supported the *fatwa* but expressed concern over the separation of church and state. Local observers said the *fatwa* was discriminatory and a step backwards from gender equality.

The law protects women's rights in marriage and family matters; however, some minors were pressured to marry men against their will, and informal polygamy, although illegal, was reported. Inheritance laws do not discriminate against women although in practice some inheritances passed disproportionately to sons.

Children

The government remained committed to children's rights and welfare, but it did not devote adequate financial resources to maintain the social security network for child welfare. Poverty and a lack of resources contributed to a deterioration of the public school system and the medical infrastructure available to children.

Education is compulsory until age 16 and public education was free and universal. The law was not enforced and, while most children were enrolled in school up to the mandatory secondary level, actual attendance was estimated to be lower because children supplemented family income by working in the home or in informal activities (see section 6.d.). Girls became increasingly disadvantaged, especially in rural school systems, where families elected to keep them home to help take care of siblings or work in the fields. Government statistics reported over 90 percent of children attend school, although this number reflected children who are registered at school and the World Bank estimated actual attendance was more likely around 85 percent.

With the decline of the country's underfunded public schools, a small number of poor male students were recruited and sent to Egypt, Turkey, and Pakistan to receive a free Islamic education.

Medical care is equally available to both boys and girls. The government acknowledged that malnutrition was a severe problem and worked with international humanitarian organizations and foreign governments to support school feeding programs. Action Against Hunger, a European-based NGO, estimated 30 percent of children suffer from chronic malnutrition, 17 percent from acute malnutrition, and 4.2 percent from severe malnutrition.

There were a few reports of violence against children.

Underage marriage was widespread in rural areas, a practice influenced by the high level of poverty and unemployment which compelled many families to marry off their daughters as soon as possible.

Trafficking continued to be a problem (see section 5, Trafficking).

Child labor continued to be a problem (see section 6.d.).

Trafficking in Persons

The law prohibits trafficking in persons; however, trafficking in persons from and through the country was a problem. There were reports that government officials facilitated trafficking.

The law criminalizes trafficking in persons with penalties of imprisonment from 5 to 15 years and confiscation of personal property. Traffickers may also be prosecuted under laws prohibiting exploitation of prostitution, rape, kidnapping, buying, and selling of minors, document fraud, and immigration violations. The penalties for these offenses range from fines to imprisonment from 5 to 20 years.

According to the International Organization for Migration (IOM), during the year 93 cases of trafficking in persons were reported compared to 41 cases in 2004, 3 cases were related to trafficking of minors and newborns. The rest were mostly related to trafficking of women abroad for sexual exploitation. According to the MOI, 23 criminal groups involved in trafficking of persons were exposed during the year; 13 of them were revealed as the result of international cooperation. Specialized antitrafficking law enforcement units continued to investigate reported trafficking cases, with 81 trafficking cases launched and 58 people convicted during the year, a dramatic increase from 29 convictions in the previous year.

The Trafficking in Persons Investigative Unit, composed of five female investigators within the MOI, was responsible for combating kidnapping, trafficking in persons, and racketeering; the five officers in this year-old division were assigned to investigate trafficking cases. The division reported that there were at least 12 criminal rings in the country involved in trafficking young girls to Gulf countries. A high-level interagency commission focused on coordinating antitrafficking efforts and drafted the National Government Action Plan on People Trafficking for 2006-2010. The government generally worked openly and cooperatively with the international community and the IOM to combat trafficking.

On March 4, regional MOI officers detained Shavkat Pochokalonov, Muborak Hojaeva, Valikhodja Hojaev, and Yusuf Hojaev, all members of a criminal group who in 2002, in cooperation with Salomat Pochokalonova and Gufrona Pochokalonova, trafficked D. Oblokulova to Dubai and exploited her as a prostitute until 2003. From August to December 2002, the same group trafficked S. Kurbanova to Dubai for forced prostitution. On March 8, Muborak Khodjaeva and Salomat Pochokalonova were convicted of trafficking D. Kenjaeva to Dubai and exploiting her as a prostitute.

Several cases of trafficking in children were convicted during the year. Dushanbe MOI officers detained Guljakhon Sharipova, who in conspiracy with the Ministry of Emergency Situations nurse Tatyana Isroilova, sold her newborn son to H. Gulmurodova for \$40 (127 somonis). On March 4, Dushanbe MOI officers detained Saodat Murodova, an obstetrician at the Scientific Institute of Obstetrics, Gynecology, and Pediatrics, and Mainisso Narzulloeva, Director of the Diagnostic Polyclinic, for selling a baby girl, born at the maternity ward of Murodova's institute, to N. Nabieva for \$300 (954 somonis).

The country was a source and a transit point for trafficked persons, primarily women and girls; trafficking within the country was also a problem. Men and boys were reportedly trafficked and used for labor. Media reports estimated that over one thousand persons were victims of trafficking during the year. According to the MOI and information gathered from antitrafficking hot lines, victims came primarily from Khujand or Dushanbe and most were trafficked to Russia, former Soviet countries, the Persian Gulf states (including the United Arab Emirates, Yemen, Iran, and Saudi Arabia), Turkey, Syria, and Pakistan.

The majority of trafficking victims were female, single, and aged 20 to 26. Many were new arrivals to Dushanbe or Khujand from rural areas with little formal education. Child trafficking victims usually were in the care of extended family. Ethnic minorities were overrepresented among victims, particularly those of Slavic origin. Rural, uneducated, and abjectly poor communities were also particularly vulnerable.

Women and girls were trafficked from the country primarily for cheap domestic labor or sex work. Male trafficking victims were primarily used for labor abroad in agriculture, factories, or construction; some were held as slaves without pay.

Traffickers included former field commanders--so-called warlords- who rose to positions of power and wealth during the country's civil war. Others, including women, were powerful local figures who used their wealth to cultivate patron-client relationships throughout their community to create a trafficking network. Recruiters were also often individuals familiar to victims, such as neighbors, acquaintances, or relatives.

Victims commonly were recruited through false promises of employment. Advertisement of such work was conducted through social contacts; traffickers used their local status and prestige to help recruit victims. There also were cases of false wedding proposals and, on occasion, kidnappings in rural areas. Traffickers generally transported victims by air to the Middle East and by train to Russia and other former Soviet Union countries. Traffickers tightly controlled arrangements for travel and lodging and employed contacts among tourism agencies. They sometimes used forged documents to evade entry restrictions in destination countries. Victims commonly were not separated from their travel documents until arrival in the destination country. Debt bondage was a common form of control. There were also reports of male and female medical professionals trafficked from the country to Yemen to work at medical clinics for substandard wages; traffickers reportedly seized their travel documents and forced female medical personnel into prostitution.

According to official MOI data, at least 420 women from the country are involved in commercial sex work in former Soviet Union and Middle East countries, including over 250 in the United Arab Emirates. During the year government and IOM representatives traveled to Dubai to repatriate 49 women back to the country. Upon return they were provided with medical assistance, training, and other types of support.

Corruption was endemic in the country, and reports indicated that high- and low-level government authorities working in customs, border control, immigration, police, and tourism took bribes from traffickers. It was also believed that certain government figures acted as patrons or protectors of individuals who were directly involved in trafficking. There was no indication of widespread institutional involvement in trafficking by the government. During the year authorities prosecuted some low-level government officials.

Victims of prostitution and trafficking cannot be charged for crimes committed while they were victims.

Victims usually did not pursue legal action against traffickers due to the social stigma. According to an IOM survey, nearly half of trafficking victims who returned to the country were blackmailed by local officials (themselves extorted by traffickers) to change their story or face exposure as a victim.

There were few resources available to trafficking victims. The government officially provided security and assistance to trafficking victims and endorsed efforts by international and domestic NGOs to prevent trafficking and provide services to victims. The government also cooperated with IOM to establish two temporary shelters for repatriated trafficking victims and at year's end was in the process of setting up a shelter for permanent use. The MOI, in cooperation with IOM, began constructing a safe house for trafficking victims in Khujand.

There were approximately 20 NGOs involved in antitrafficking activities throughout the country. Several provided various services to trafficking victims and carried out a wide range of information programs in conjunction with local authorities throughout the country. NGOs matched victims with social services, operated crisis centers, and maintained a hot line for trafficking and domestic abuse victims.

Local NGO programs worked with support from international organizations to increase awareness of trafficking; NGOs worked with local officials to conduct training and awareness seminars for the general public. The government did not directly fund any antitrafficking public service announcements, but it did promote such announcements as well as informational materials produced and distributed by local and international organizations. The government also cooperated with international organizations on prevention programs by holding joint seminars, conferences, and distributing antitrafficking brochures.

Persons with Disabilities

The law does prohibit discrimination in employment, education, access to healthcare, and provision of other state services, and discrimination was not a problem. There is no law mandating access to buildings for persons with disabilities, and the government did not require employers to provide such access.

Although there were group-living and medical facilities for persons with disabilities, funding was limited and facilities were in poor condition.

The Ministry of Labor and Social Welfare, the government commission on fulfillment of international human rights, the Prosecutor General's Office, the Society of Invalids, and appropriate local and regional governmental structures were all charged with protecting the rights of persons with disabilities.

Section 6 Worker Rights

a. The Right of Association

The law allows workers to form and join unions and they did so in practice.

According to official figures approximately 90 percent of the labor force was unionized. Most unions were affiliated with the Federation of Trade Unions of Tajikistan, an independent umbrella organization that attempted to represent all trade unions in the country. However, it was largely seen as ineffective and as an organization that generally supported government policies.

The law does not specifically prohibit antiunion discrimination. There were no reported incidents of antiunion discrimination in practice.

b. The Right to Organize and Bargain Collectively

The law allows unions to conduct their activities without interference, except "in cases specified by law," and the government protected this right in practice. The laws provide for the right to organize and bargain collectively, and workers exercised this right in practice. 90 percent of workers were under collective bargaining contracts (technically all workers belonging to unions were permitted to organize and bargain collectively). The law does not restrict the right to strike, but there were no strikes during the year. In practice people were reluctant to strike due to fears of government retaliation.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor, including of children, except in cases defined in the law; however, there were reports that such practices occurred (see sections 5 and 6.d.).

Owners of privatized farms regularly compelled former state or collective farm workers to pick cotton. The government requested collective farm workers to participate in this labor, and although there were no official consequences for refusal, workers feared they would be expelled from their collective farms or that the government would destroy their land if they did

not oblige. Although all state farms were privatized, some farmers chose to work in collective groups for financial reasons. Workers usually were neither paid nor provided the services they were once given under the former collective system for this labor, such as health care and education.

d. Prohibition of Child Labor and Minimum Age for Employment

Child labor remained a problem, and the government neither effectively enforced child labor laws nor strengthened existing regulations on acceptable working conditions for children.

The minimum age for children to work is 16, although children may work at age 15 with local trade union permission. By law children under the age of 18 may work no more than 6 hours a day and 36 hours per week. Children as young as seven may participate in household labor and agricultural work, which are separately classified as family assistance. Many children under 10 worked in bazaars or sold goods on the street.

Unions were responsible for reporting any violations in the employment of minors. Unresolved cases between unions and employers may be brought before the prosecutor general for investigation, who may charge the manager of the enterprise with violations of the law. Very few violations were reported as most children worked under the family assistance exception. Enforcement of child labor laws was the responsibility of the Prosecutor's Office, the MOJ, the Ministry of Social Welfare, the MOI, and appropriate local and regional governmental offices.

The illegal Soviet-era practice of closing secondary schools and universities at cotton harvest time and putting students to work continued. The IOM estimated that 40 percent of the country's cotton was picked by students, and according to World Bank statistics, as many as one in eight children worked full-time instead of attending school.

Trafficking of children occurred (see section 5).

The government does not have a comprehensive policy or national action plan to prevent or eliminate the worst forms of child labor.

e. Acceptable Conditions of Work

The official national minimum monthly wage of \$3.90 (12 somoni) did not provide a decent standard of living for a worker and family. The wage is established by the president with the advice of the Ministry of Labor and in consultation with unions. There was no official estimate of the poverty income level, though the World Bank indicated that 64 percent of the population lived below the poverty line which they designated at \$1 per day (2.78 somoni). Some observers estimated that a minimum of \$25 dollars per month (80 somoni) was required to avoid abject poverty in the capital.

The government acknowledged the problem of low wages and provided certain subsidies for workers and their families at the minimum wage. Some establishments, both governmental and private, compensated their employees in kind with food commodities or with enterprise-produced products, which employees either sold or bartered in local private markets.

The law provides for a standard workweek of 40 hours for adults over the age of 18. The law mandates overtime payment, with the first two hours paid at one and a half times the normal rate and the remainder at double the rate. Overtime payment was inconsistent in all sectors of the labor force. The Ministry of Finance enforces financial aspects of the labor law, and the Agency of the Financial Control of the presidential administration oversees other aspects of the law.

Government-established occupational health and safety standards fell far below accepted international norms, and the government did not enforce them in practice.

The State Technical Supervision Committee under the council of ministers was responsible for enforcing health and safety standards. The law permits workers to remove themselves from hazardous conditions without risking loss of employment. This law was not enforced effectively, and few workers did so in practice.

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